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Case Number: 25STCV23426 Hearing Date: June 23, 2026 Dept: 408

1. Defendants Heroine

Sport, Nima Taherzadeh, Marvin Davila, and Claudia Pachon's Demurrer to

Plaintiff Rita Rodriguez's Second Amended Complaint is SUSTAINED.

2. Defendants Heroine

Sport, Nima Taherzadeh, Marvin Davila, and Claudia Pachon's Motion to Strike

Portions of Plaintiff Rita Rodriguez's Second Amended Complaint is GRANTED.

The court will inquire whether leave

to amend should be granted at the hearing.

I.

BACKGROUND

On August 11, 2025, Plaintiff Rita Rodriguez ("Plaintiff") filed a

complaint against Defendants Heroine Sport ("Heroine"), Marvin Davila

("Davila"), and Claudia Pachon ("Pachon"), erroneously sued as Marcela Doe, (collectively

"Defendants") alleging causes of action for:

1.

Civil Stalking – Civ. Code § 1708.7;

2.

Violation of Bane Act – Civ. Code § 52.1;

3.

Intentional Infliction of Emotional Distress;

4.

Negligent Hiring, Supervision, and Retention;

5.

Invasion of Privacy; and

6.

Pregnancy Discrimination – Gov. Code §

12940(a).

On September 24, 2025, Plaintiff filed a First Amended Complaint (“FAC”)

alleging causes of action for:

1.

Civil Stalking – Civ. Code § 1708.7;

2.

Violation of Bane Act – Civ. Code § 52.1;

3.

Intentional Infliction of Emotional Distress;

4.

Negligent Hiring, Supervision, and Retention;

5.

Pregnancy Discrimination – Gov. Code §

12940(a);

6.

Retaliation – Gov. Code § 12940(h); and

7.

Wrongful Termination in Violation of Public

Policy.

On January 23, 2026, the court sustained in part Defendants' Demurrer to

Plaintiff's FAC as to the first through fifth causes of action with leave to

amend and overruled in part as to the sixth and seventh causes of action. The

court also granted Defendants' Motion to Strike portions of Plaintiff's FAC.

On January 26, 2026, Plaintiff filed a Second Amended Complaint ("SAC")

adding Defendant Nima Taherzadeh ("Taherzadeh").

On April 24, 2026, Defendants filed this Demurrer and Motion to Strike

against Plaintiff's SAC. On May 4, 2026, Plaintiff filed an opposition. On June

9, 2026, Defendants filed a reply.

II.

DEMURRER

A.

Legal Standard

“The party against whom a complaint or

cross-complaint has been filed may object, by demurrer or answer as provided in

Section 430.30, to the pleading on any one or more of” various grounds listed

in statute. (Code Civ. Proc., § 430.10.)

When considering

demurrers, courts read the allegations liberally and in context. In a demurrer

proceeding, the defects must be apparent on the face of the pleading or via

proper judicial notice. (Donabedian v. Mercury Ins. Co. (2004) 116

Cal.App.4th 968, 994.) “A demurrer tests the pleading alone, and not the

evidence or facts alleged.” (E-Fab, Inc. v. Accountants, Inc. Servs.

(2007) 153 Cal.App.4th 1308, 1315.) As such, the court assumes the truth of the

complaint's properly pleaded or implied factual allegations. (Ibid.) The

only issue a demurrer is concerned with is whether the complaint, as it stands,

states a cause of action. (Hahn v. Mirda (2007) 147 Cal.App.4th

740, 747.)

Where a demurrer is sustained, leave

to amend must be allowed where there is a reasonable possibility of successful amendment. (Goodman v. Kennedy (1976) 18 Cal.3d 335, 348.) The burden is on the plaintiff to show the court that a pleading can be amended successfully.

(Id.; Lewis v. YouTube, LLC (2015) 244 Cal.App.4th 118, 226.) However,

“[i]f there is any reasonable possibility that the plaintiff can state a good cause of action, it is error to sustain a demurrer without leave to amend.” (Youngman v. Nevada Irrigation Dist. (1969) 70 Cal.2d 240, 245.)

B.

Discussion

Defendants demur to all seven causes of action in Plaintiff’s SAC pursuant to Code of Civil Procedure section 430.10, subdivisions (a), (f), and (e), on the grounds that Plaintiff’s claims are precluded, Plaintiff fails to state sufficient facts to constitute such causes of action, and it is uncertain.^[1]

1.

Uncertainty

Defendants demur

to Plaintiff’s SAC on the grounds that it is uncertain. (Demurrer, at pp. 23-24.)

A party may demur

to a complaint where “[t]he pleading is uncertain,” meaning also that it is

“ambiguous [or] unintelligible.” (Code Civ. Proc. § 430.10, subd. (f).) “Such a demurrer should not be sustained where the allegations of the complaint are sufficiently clear to apprise the defendant of the issues which he is to meet.” (People v. Lim (1941) 18 Cal.2d 872, 882.) A demurrer for uncertainty is strictly construed, even where a complaint is in some respects uncertain, because ambiguities can be clarified under modern discovery procedures.” (Khoury v. Maly's of Calif., Inc. (1993) 14 Cal.App.4th 612, 616.)

The court finds that Plaintiff's allegations supporting the causes of action alleged are not so unintelligible that Defendants are not apprised of the issues they must respond to as discussed below. The court considers the demurrer on the merits. Accordingly, the special demurrer for uncertainty is overruled.

2.

1st Cause

of Action – Civil Stalking (Civ. Code § 1708.7)

The necessary elements for the tort of stalking are: (1) the defendant's pattern of conduct; (2) the defendant's intent to follow, alarm, or harass the plaintiff; and (3) that the plaintiff was

reasonably fearful for the safety of his self, his immediate family member, or any person who regularly resided in the plaintiff's household in the six months preceding the stalking. (In re Brittany K. (2005) 127

Cal.App.4th 1497, 1510, discussing Civ. Code, § 1708.7.) Additionally,

“statutory causes of action must be pleaded with particularity.” (Covenant

Care, Inc. v. Superior Court (2004) 32 Cal.4th 771, 790.)

Defendants argue that Plaintiff's allegations are conclusory and fails to provide facts that any Defendant made a credible threat as part of a pattern of conduct within the meaning of Section 1708.7(b)(1) and (2). (Demurrer, at p. 15.)

Defendants also argue that Plaintiff fails to allege that Plaintiff demanded that any such pattern of conduct cease and the pattern of conduct persisted pursuant to Section 1708.7(a)(3)(A). (Ibid.)

In opposition, Plaintiff fails to provide any arguments in support of the civil stalking cause of action.

The SAC alleges that, during Plaintiff's employment at Heroine, Defendants engaged in a pattern of targeted conduct toward Plaintiff involving intimidation, humiliation, monitoring, gossip, and interference with her work; that Davila repeatedly interrupted Plaintiff mid-sentence, refused to allow her to complete work-related communications, and undermined her ability to perform her job; that Davila routinely redirected Plaintiff from her normal duties under the pretext

of urgent shipping tasks, then allowed those orders to remain unshipped for

extended periods, creating the appearance of poor performance; that Taherzadeh and Pachon deliberately occupied Plaintiff's assigned workspace

despite having their own workstations, interfering with Plaintiff's ability to

work; that Pachon unnecessarily positioned herself close to Plaintiff and

repeatedly obstructed Plaintiff's movement while Plaintiff attempted to perform

her daily job duties; that, on June 12, 2025, Davila and Taherzadeh

stood over and surrounded Plaintiff at her desk in a manner that was

intimidating and out of character; that Davila made statements implying

knowledge of Plaintiff's private reproductive and medical circumstances,

including references suggesting pregnancy termination; and that, on June 13,

2025, Davila again approached Plaintiff's desk, stood extremely close to her,

and stated words to the effect that "this would be the case every time," which

Plaintiff reasonably understood as a continuing threat. (SAC, ¶¶ 13-14, 17,

23-27.) Plaintiff alleges that such conduct caused Plaintiff fear, humiliation,

and concern for her bodily autonomy and privacy. (Id., ¶ 28.) In support of the civil stalking claim, Plaintiff alleges that Defendants engaged

in a course of conduct directed at Plaintiff involving repeated proximity,

intimidation, and implicit threats. (Id., ¶ 36.)

The court does not find that Plaintiff's allegations are sufficient to

state a cause of action for civil stalking against Defendants under Civil Code

section 1708.7. The SAC fails to allege conduct as described in Section 1708.7(a) that would support a statutory cause of action for civil stalking beyond conduct that occurred in the workplace.

Accordingly, the demurrer is sustained as to the first cause of action.

3.

2nd Cause

of Action – Violation of The Bane Act (Civ. Code § 52.1)

A claim for violation of the Bane Act

can be brought by an individual against a private person, where that person

interferes with the Plaintiff's legal rights by threat, intimidation, or

coercion. (Civ. Code, § 52.1, subd. (a), (b).) "The essence of a Bane Act claim is that the

defendant, by the specified improper means (i.e., 'threat[], intimidation or

coercion'), tried to or did prevent the plaintiff from doing something he or

she had the right to do under the law or to force the plaintiff to do something

that he or she was not required to do under the law." (King v. State of

Cal. (2015) 242 Cal.App.4th 265, 294; Austin B. v. Escondido Union

School Dist. (2007) 149 Cal.App.4th 860, 883.)

Defendants argue that Plaintiff fails to identify any

constitutional right allegedly violated and fails to allege any threat of

violence by Defendants to support a claim under the Bane Act. (Demurrer, at pp.

15-16.)

In opposition, Plaintiff again fails to provide any arguments in support of the second cause of action.

The court finds that Plaintiff's SAC fails to plead

facts with the required particularity to support a Bane Act claim.

The SAC does not allege facts showing how Defendants used threats,

intimidation, or coercion to interfere with Plaintiff's rights, nor does

it allege facts showing Defendants acted with the specific intent to

do so. Instead, Plaintiff merely alleges that "Defendants interfered with

Plaintiff's constitutional and statutory rights, including the right to

privacy, bodily autonomy, and freedom from retaliation" and that "Defendants

used threats, intimidation, and coercive conduct with specific intent to

interfere with those rights." (SAC,

¶¶ 39-40.) Such allegations are simply too conclusory to support a cause of

action under the Bane Act.

The demurrer is sustained as to the second cause of action.

4.

3rd Cause

of Action – Intentional Infliction of Emotional Distress

"The elements of a prima facie case for

the tort of intentional infliction of emotional distress are: (1)

extreme and outrageous conduct by the defendant with the intention of

causing, or reckless disregard of the probability of causing, emotional

distress; (2) the plaintiff's suffering severe or extreme emotional distress;

and (3) actual and proximate causation of the emotional distress by the

defendant's outrageous conduct. Conduct to be outrageous must be so extreme as

to exceed all bounds of that usually tolerated in a civilized

community." (Wilson v. Hynek (2012) 207 Cal.App.4th 999, 1009

[citation and ellipses omitted].)

Defendants argue that Plaintiff's

conclusory allegations of Defendants' harassing conduct are insufficient to

support a claim for intentional infliction of emotional distress. (Demurrer, at

p. 16.)

In opposition, Plaintiff fails to provide any arguments in support of the

intentional infliction of emotional distress claim.

The court again finds that, as

currently pled, Defendants' conduct does not appear to go beyond "mere

insults, indignities, threats, annoyances, petty oppressions, or other

trivialities." (Crouch v. Trinity Christian Center of Santa Ana, Inc. (2019)

39 Cal.App.5th 995, 1007.) Plaintiff fails to provide any authority or argument

to find otherwise. Plaintiff's conclusory allegations that Defendants' conduct was extreme and outrageous are insufficient to support an intentional infliction of emotional distress claim when the allegations fails to demonstrate conduct that exceed all bounds of that usually tolerated in a civilized community.

The demurrer is sustained as to the third cause of action.

5.

4th Cause of

Action - Negligent Hiring, Supervision, and Retention

The elements of a cause of action

for negligent hiring, retention, or supervision are: (1) the employer's hiring, retaining, or supervising an employee; (2) the employee was incompetent or unfit; (3) the employer had reason to believe undue risk of harm would exist because of the employment; and (4) harm occurs. (Evan F. v.

Hughson United Methodist Church (1992) 8 Cal.App.4th 828,

836-837.)

Defendants argue that Plaintiff fails

to allege sufficient facts showing that Heroine Sport knew or

should have known that Defendants harassed Plaintiff. (Demurrer, at p 17.)

Defendants also argue that Plaintiff's negligent hiring, supervision, and

retention claim is barred by the exclusive remedy provision of the Workers'

Compensation Act pursuant to Labor Code section 3601. (Ibid.)

In opposition, Plaintiff fails to

address Defendants' arguments as to the fourth cause of action.

The court previously

found that

Plaintiff's negligent hiring,

supervision, and retention cause of action is barred by the Workers' Compensation Act ("WCA"). Nevertheless, the

court granted leave to amend on the grounds that, even if the WCA did not bar

Plaintiff's claim, Plaintiff fails to allege sufficient facts demonstrating

that Heroine knew or should have known of the harassment suffered by Plaintiff.

The SAC fails to provide anything beyond the conclusory allegation that "Heroine Sport knew

or should have known of Defendants' conduct" and that "Heroine Sport

failed to take reasonable corrective action." (SAC, ¶¶ 44-45.) Such allegations

continue to be insufficient.

The demurrer is sustained as to the fourth cause of action.

6.

5th and 6th

Causes of Action – Fair Employment and Housing Act ("FEHA")^[2]

"A plaintiff who seeks to bring a FEHA

action must first exhaust her administrative remedies. (Citation). In

order to exhaust administrative remedies, a plaintiff must file a complaint with the [Civil Rights Department, formerly known as Department of Fair Employment and Housing (“DFEH”)] within one year from the date on which the alleged unlawful conduct occurred. [Cal. Gov’t Code § 12960(b), (d).] The DFEH will then issue a right-to-sue notice upon completion of its investigation of the complaint and not later than one year after the initial filing of the complaint. [Id. § 12965(b).] A plaintiff must ordinarily obtain a right-to-sue letter to bring a FEHA claim in court.” (McCarthy v. R.J. Reynolds Tobacco Co. (E.D. Cal. 2011) 819 F. Supp. 2d 923, 935.)

Defendants argue that the SAC fails to allege that Plaintiff filed a Civil Rights Department (“CRD”) complaint as to her FEHA claims for pregnancy discrimination and retaliation against Defendants before initiating this action and received the required right-to-sue letter. (Demurrer, at pp. 17-18.) Defendants also argue that Plaintiff does not allege that an amended CRD complaint was filed to add Taherzadeh to such claims. (Id., ¶ 18.)

In opposition,

Plaintiff contends that obtained a right-to-sue notice from the CRD dated April 16, 2026. (Opp., at p. 4; Rodriguez Decl., ¶¶ 12-13, Exh. B.)

The court finds

that Plaintiff failed to exhaust her administrative remedies prior to

filing this action as Plaintiff obtained a right-to-sue notice on

April 16, 2026, after the commencement of this action on August 11, 2025. Plaintiff fails to provide any authority stating that obtaining

a right-to-sue

letter after filing an action is sufficient to

comply with the requirements of FEHA.

Additionally, the court

notes that are not liable for management decisions later attacked as

discriminatory or retaliatory but individuals may be held liable for their

own harassment or for the maintenance of a hostile work environment (Reno

v. Baird (1998) 18 Cal.4th 640, 645-646; Jones v. Lodge at Torrey

Pines Partnership (2008) 42 Cal.4th 1158, 1173; but see Roby v.

McKesson Corp. (2009) 47 Cal.4th 686, 710.) Pursuant

to Reno and Jones, the court finds that Davila,

Pachon, and Taherzadeh

may not be liable for discrimination and retaliation under FEHA for

management decisions made through Heroine.

Accordingly, the demurrer is sustained as to the fifth and sixth causes

of action.

7.

7th Cause

of Action - Wrongful Termination in Violation of Public Policy

An employee has a common law right to sue for wrongful termination

“when he or she is discharged for performing an act that public policy would

encourage, or for refusing to do something that public policy would

condemn.” (Gantt v. Sentry Insurance (1992) 1 Cal.4th 1083,

1090 [overruled on other grounds].) ““The elements of a claim

for wrongful discharge in violation of public policy are (1) an

employer-employee relationship, (2) the employer terminated the plaintiff’s

employment, (3) the termination was substantially motivated by a violation of

public policy, and (4) the discharge caused the plaintiff harm.” (Nosal-Tabor

v. Sharp Chula Vista Medical Center (2015) 239 Cal.App.4th 1224,

1234-1235, quoting Yau v. Allen (2014) 229 Cal.App.4th 144,

154.)

In support of such claim, the SAC alleges that, on September 23,

2025, Plaintiff was placed on administrative leave and Plaintiff was

subsequently terminated the following day via email. (SAC, ¶¶ 31-32.) The SAC

also alleges that the termination email expressly stated Plaintiff was

terminated due to her lawsuit and allegations. (Id., ¶ 34.) The SAC alleges that Defendants

terminated Plaintiff in violation of fundamental public policies prohibiting

discrimination and retaliation. (Id., ¶ 51.)

The court notes that a previous ruling on Defendants' demurrer to

Plaintiff's FAC was overruled as to the seventh cause of action on the grounds

that Plaintiff's

allegations that she was wrongfully terminated because she filed lawsuits for

stalking and harassment was sufficient to state a claim for wrongful

termination in violation of public policy. Nevertheless, Plaintiff has changed

and removed those allegations from the SAC. As currently pled, Plaintiff fails

to allege that any complaints were made to Heroine or any supervisor regarding

Defendants' purported discriminatory and retaliatory conduct to find that those

complaints were a motivating factor to terminate Plaintiff's employment. The

allegations provided are simply too vague and conclusory.

In opposition,

Plaintiff argues that the wrongful termination claim is based on the underlying

discrimination and retaliation allegations. (Opp., at p. 3.) However, the mere

allegation of discriminatory and retaliatory conduct is insufficient to support

a claim for wrongful termination when it is unclear that Plaintiff was discharged for performing an act that public policy would

encourage, or for refusing to do something that public policy would disapprove.

(Gantt, *supra*, 1 Cal.4th at 1090.)

The demurrer is sustained as to the seventh cause of action.

III.

MOTION TO STRIKE

A.

Legal Standard

Pursuant to Code of Civil Procedure section

436, "the court may, upon a motion made pursuant to Section 435, or at any time

in its discretion, and upon terms it deems proper: (a) Strike out any

irrelevant, false, or improper matter inserted in any pleading. (b) Strike out

all or any part of any pleading not drawn or filed in conformity with the laws

of this state, a court rule, or an order of the court." The grounds for a

motion to strike must "appear on the face of the challenged pleading or from

any matter of which the court is required to take judicial notice." (Code Civ.

Proc., § 437.)

B.

Discussion

Defendants move to

strike portions of Plaintiff's SAC pertaining to allegations regarding Plaintiff's prior

employment on the grounds that such allegations are irrelevant and improper, stating the

following:

“Prior to

Plaintiff's employment with Defendant Heroine Sport, Plaintiff worked at a

different company in or around 2023 where Marvin's daughter was also employed.

Plaintiff later became aware that her child's father had children with Marvin's

daughter, including children close in age to Plaintiff's own children.

Plaintiff alleges this background is relevant solely to explain Defendants'

motive and the personal nature of the harassment directed at Plaintiff during

her later employment at Heroine Sport.”

(SAC,

¶ 18.)

In opposition, Plaintiff contends that such allegations provide relevant

context concerning

emotional distress, intent, and motive. (Opp., at p. 5.)

The court disagrees and finds that such allegations are irrelevant for

Plaintiff to sufficiently allege her claims against Defendants.

As such, the motion is granted.

IV.

CONCLUSION

1. Defendants Heroine

Sport, Nima Taherzadeh, Marvin Davila, and Claudia Pachon's Demurrer to

Plaintiff Rita Rodriguez's Second Amended Complaint is SUSTAINED.

2. Defendants Heroine

Sport, Nima Taherzadeh, Marvin Davila, and Claudia Pachon's Motion to Strike

Portions of Plaintiff Rita Rodriguez's Second Amended Complaint is GRANTED.

The court will inquire whether leave

to amend should be granted at the hearing.

[1] In

opposition, Plaintiff argues that Defendants' demurrer is untimely. (Opp., at

p. 4.) The court will not address such arguments and exercises

its discretion to consider the demurrer and motion to strike on the merits

despite any alleged procedural deficiencies. (McAllister v. County of

Monterey (2007) 147 Cal.App.4th 253, 280 [30-day deadline to file a

demurrer pursuant to Code of Civil Procedure section 430.40, subdivision (a),

is not mandatory; Jackson v. Doe (2011) 192 Cal.App.4th 742, 749 [trial

court has discretion to consider

an untimely demurrer].)

[2] The

court notes that although Defendants' demurrer to Plaintiff's FAC was

previously overruled as to the sixth cause of action, Defendants now provide

independent grounds to sustain the demurrer as to that cause of action in

Plaintiff's SAC. Thus, the court considered such arguments on the merits.